

25STCV10286 25STCV10286

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-01

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Case Number: 25STCV10286 Hearing Date: September 1, 2026 Dept: 512

HEARING DATE: Tues., September 1, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Johnson

v. Wesley, Jr. COMP. FILED: 04-08-25

CASE NUMBER: 25STCV10286

NOTICE: OK

PROCEEDINGS: SECOND MOTION TO EXPUNGE LIS PENDENS

MOVING PARTY: Defendant

Curtis James Wesley, Jr.,

RESP. PARTY: Plaintiff Keiana Johnson

MOTION TO EXPUNGE LIS PENDENS

(Code

Civ. Proc., § 405.20, et seq.)

TENTATIVE RULING:

Defendant Curtis James Wesley, Jr.'s

Motion to Expunge Lis Pendens, Dismiss Complaint with Prejudice, Award

Sanctions, and Refer to District Attorney for Perjury is DENIED.

Moving party is

ordered to give notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on August 17, 2026 ☐ Late ☐
☐ None

REPLY: Filed
on August 24, 2026 ☐ Late ☐
☐ None

ANALYSIS:

I.
Background

On April 8, 2025, Plaintiff Keiana
Johnson ("Plaintiff"), proceeding pro se, filed the instant action against
Defendant Curtis James Wesley, Jr. ("Defendant") alleging Breach of Contract
and Common Counts causes of action.

On April 22, 2025, Plaintiff filed a
Notice of Pendency of Action. (4/22/25 Notice of Pendency of Action.) On April
28, 2025, Plaintiff filed a Notice of Pendency of Action. (4/28/25 Notice of
Pendency of Action.) On May 6, 2025, Plaintiff filed a Notice of Pendency of
Action. (5/6/25 Notice of Pendency of Action.)

On July 9, 2025, Defendant filed an
Answer.

On May 21, 2026, the Court denied Defendant's Ex Parte Application for Order Shortening Time as "defendant does not have any motion scheduled or filed. Therefore, the Court cannot shorten time on something that has not been filed." (5/21/26 Order.)

On May 21, 2026, Defendant, now proceeding pro se, filed the first Motion to Expunge Lis Pendens, Dismiss Complaint with Prejudice, Award Sanctions, and Refer to District Attorney for Perjury (the "Motion"). On June 26, 2026, the Court took the Motion off calendar due to the parties' failure to appear. (6/26/26 Order.)

On August 4, 2026, Defendant filed the instant second Motion.

On August 7, 2026, the Court found the instant case and 26STCP01781 to be related. (8/7/26 Order.)

On August 17, 2026, Plaintiff, now represented by counsel, filed an Opposition to the second Motion and Evidentiary Objections to the Wesley, Jr. declaration filed in support of the second Motion.

On August 24, 2026, Defendant filed a Reply.

II. Evidentiary Objections

In support of the Opposition, Plaintiff objects to two portions of the Wesley Jr. declaration filed in support of the second Motion as well as Exhibit L and Exhibit K attached to the Wesley Jr. Declaration. (Opp., Evid. Objections.)

Defendant provides arguments against the evidentiary objections in the body of the Reply brief to the second Motion. (Reply, pp. 8-9.)

The Court OVERRULES the first and second objections to Wesley Jr.'s declaration supporting the Motion. The Court

SUSTAINS the objections to Exhibits L and K attached to the second Motion.

III.

Legal

Standard

“At any time after notice of pendency of action has been recorded, any party, or any nonparty with an interest in the real property affected thereby, may apply to the court in which the action is pending to expunge the notice.... Evidence or declarations may be filed with the motion to expunge the notice.... The claimant shall have the burden of proof under Sections 405.31 and 405.32.” (Code Civ. Proc., § 405.30.) The “claimant” is the “party to an action who asserts a real property claim and records a notice of the pendency of the action.” (Code Civ. Proc., § 405.1.)

The court shall order the notice expunged if (1) the court “finds that the claimant has not established by a preponderance of the evidence the probable validity of the real property claim,” or (2) the Court “finds that the pleading on which the notice is based does not contain a real property claim.” (Code Civ. Proc., §§ 405.31-405.32.)

“In making this determination [for whether a complaint states a real property claim], the court must engage in a ‘demurrer-like analysis,’ asking whether the claimants have pled facts entitling them to the remedy they seek.” (De Martini v. Superior Court (2024) 98 Cal.App.5th 1269, 1278.) “Review ‘involves only a review of the adequacy of the pleading and normally should not involve evidence from either side, other than possibly that which may be judicially noticed as on a demurrer.’ ” (Kirkeby v. Superior Court (2004) 33 Cal.4th 642, 648.)

IV.

Discussion

Defendant moves for various forms of relief in the second Motion, including expunging the lis pendens, dismissing the complaint with prejudice, awarding sanctions, and referring Plaintiff to the District Attorney. Defendant contends the lis pendens must be expunged because Plaintiff cannot establish the probable validity of the real property claim. Further, Defendant contends the Complaint should be dismissed as it is a sham pleading barred by judicial estoppel and the statute of frauds. Defendant

requests the Court impose sanctions against Plaintiff under Code of Civil Procedure sections 128.5 and 128.7 for Plaintiff's actions that constitute harassment and the Complaint's false factual contentions. Finally, Defendant requests the Court refer Plaintiff to the District Attorney for perjury. In support of the Motion, Defendant attaches a declaration and 15 exhibits. (Motion, Wesley Jr., Exh. List.)

In Opposition, Plaintiff contends the Motion should be denied on the following grounds: the Complaint asserts real property claims; the Complaint is not a sham pleading, and Defendant's evidence does not demonstrate the Complaint is a false or sham pleading; judicial estoppel does not apply here because Plaintiff never took a position in a judicial proceeding or before a tribunal; the statute of frauds does not bar the instant claim for multiple reasons, including the fraud cause of action does not rely on the oral agreement as a contract at all; Plaintiff has cognizable damages; the sanctions requests are procedurally and substantively defective; and there are no grounds to refer Plaintiff to the District Attorney as Defendant mischaracterizes the action and the Complaint. (Opp., pp. 1-18.) Defendant submits a declaration in support of the Opposition. (Opp., Johnson Decl.)

In Reply, Defendant contends Plaintiff attempts to recharacterize the Complaint but neither version of the Complaint saves it from lacking probable validity; Plaintiff's damages theory is contradicted by the documentary record; and Plaintiff's arguments regarding the procedural defects for the sanctions request is unfounded as Defendant has served the Motion, inclusive of the sanctions request, upon Plaintiff multiple times. Finally, Defendant requests the Court take a "measured approach to the district attorney referral request" but, most importantly, resolve the merits of the Motion.

The court must expunge only if the pleading "does not contain a real property claim." (Code of Civil Procedure section 405.31) A "real property claim" is any cause of action that, if meritorious, would affect title to or the right to possession of specific real property. (Cal. Civ. Proc. Code 405.4.)

Code of Civil Procedure section 405.32 defines " 'probable validity,' with respect to a real property claim, means that it is more likely than not that the claimant will obtain a judgment against the defendant on the claim." Code of Civil Procedure section 405.32

states “the court shall order that the notice be expunged if the court finds that the claimant has not established by a preponderance of the evidence the probable validity of the real property claim.”

“The party opposing a motion to expunge a lis pendens has the burden to show that a real property claim has been alleged and has probable validity based upon a preponderance of the evidence.” (Nunn v. JPMorgan Chase Bank, N.A., (2021) 64 Cal.App.5th 346, 363 citing Code Civ. Proc., §§ 405.32, 405.30.)

Here, Defendant moves to expunge the lis pendens on the grounds that Plaintiff cannot establish the probable validity of the real property claims in the Complaint. The burden of proof is thus on Plaintiff. (Ibid.)

At the outset, the Court notes that Defendant mischaracterizes the claims brought in the Complaint. Specifically, Plaintiff does not claim forgery of the operative deeds; she claims fraudulent inducement based on false misrepresentations made by the Defendant. In support of her Opposition, Plaintiff submits a declaration that states Defendant misrepresented a financing arrangement with Plaintiff and, due to Plaintiff’s reliance on Defendant’s misrepresentations, Plaintiff conveyed title to real property 515 W. 160th Street, Gardena, California 90248 (the “Subject Property”) to Defendant; however, Plaintiff did not receive adequate loan proceeds and/or title back to the Subject Property in return as the parties previously arranged and agreed to. As a result, the property was sold in non-judicial foreclosure sale. (See Opp., Johnson Decl.)

In review of the Complaint and its multiple exhibits and the Opposition’s declaration in conjunction with the evidence filed in support of the Motion, the Court finds that Plaintiff has demonstrated the probable validity of a real property claim based upon a preponderance of the evidence. (See Nunn, supra, 64 Cal.App.5th at p. 363; Code Civ. Proc., § 405.32.) Consistent with Kirkeby v. Superior Court holding, where a claim seeking to undo a title transfer (there, a fraudulent conveyance) “affects title to or the right to possession of specific real property”, as in here, the claim seeking to undo a title transfer supports a lis pendens. (Kirkeby v. Superior Ct., (2004) 33 Cal. 4th 642.) Thus, Plaintiff’s fraudulent-inducement claim, which seeks to restore her interest in the property, is title-affecting in the same way.

To the extent that the Reply brief
raises additional arguments, such as the back and forth on the authenticity as
to Exhibit E - "Without Collection" document - these are matters that are
evaluated for credibility, which at this juncture is insufficient for a finding
against the Plaintiff in the context of a motion to expunge a lis pendens.

As such, based on the totality of the
circumstances and the evidence presented in conjunction with the Complaint, the
Motion is DENIED as to the request to expunge lis pendens.

Furthermore, the Court does not find
that the Complaint is a sham pleading, barred by judicial estoppel, or barred
by the statute of frauds, or warrants referral to the District Attorney. The
Court finds these requests in the Motion are either unpersuasive, meritless, or
not supported by sufficient evidence. Further, the Court finds the Motion
mischaracterizes the nature of all claims raised in the Complaint to attempt to
support these requests.

As to Defendant's requests for
sanctions pursuant to Code of Civil Procedure sections 128.5 and 128.7,
Defendant fails to raise these claims in a separate motion as is statutorily
required. (Code Civ. Proc., §§ 128.5, (f)(1)(A), 128.7, subd. (c)(1).)

As such, the Motion is DENIED as to
the requests for dismissal, sanctions, and referral to the District Attorney.

V.

Conclusion
& Order

For the foregoing reasons, Defendant
Curtis James Wesley, Jr.'s Motion to Expunge Lis Pendens, Dismiss
Complaint with Prejudice, Award Sanctions, and Refer to District Attorney for
Perjury is DENIED.

Moving party is
ordered to give notice.